

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T. REYES II
HEARING DATE: 11/26/2025

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING
IN DEPARTMENT 16

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJOTEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: MSC21-01691
CASE NAME: GCL NEW ENERGY, INC. VS TRINA SOLAR US INC.
READINESS CONFERENCE
FILED BY:

TENTATIVE RULING:

The Parties informed the Court that this matter has settled as of November 24, 2025. The Court sets a further Case Management Conference (CMC) for March 24, 2026 at 8:30 a.m. to follow-up on the dismissal. If a Request for Dismissal is filed before March 24, 2026, this date will vacate. If not dismissed, the Parties are ordered to appear to provide an update on the resolution of this case.

Law & Motion

2. 9:00 AM CASE NUMBER: C22-01810
CASE NAME: AIM BUSINESS CAPITAL, LLC VS. MARK WOOLDRIDGE
***HEARING ON MOTION IN RE: DETERMINE GOOD FAITH OF SETTLEMENT**
FILED BY: CREATIVE FINE FOODS, LLC
TENTATIVE RULING:

The hearing on this Motion is **vacated**. The Court entered an Order Determining Good Faith Settlement on November 14, 2025. No appearance is required at this hearing.

3. 9:00 AM CASE NUMBER: C23-00279
CASE NAME: ATCHISON VILLAGE VS. MANDEL
***HEARING ON MOTION IN RE: ATTORNEYS' FEES**
FILED BY: MANDEL, PHYLLIS
TENTATIVE RULING:

Summary

The Court **grants** Defendant's Motion for Attorney's Fees and Costs, as set forth herein.

Background

On February 7, 2023, Atchison Village ("Plaintiff") filed this case against Phyllis Mandel ("Defendant"), alleging that she caused leak by allowing her bathtub to overflow, damaging certain common property of the Plaintiff, in or around January 2020. Plaintiff claims that Defendant allowed the water to build up in the bathtub and accumulate across the bathroom floor causing a causing [sic] water damage." (Complaint, ¶ 13.) Defendants claim that Plaintiff fabricated these claims, with the knowledge that the video evidence of the alleged bathtub overflow in its possession was from an unrelated event that occurred in 2019.

Plaintiff alleged that Defendant's failure pay for the repairs "demonstrates her bad faith intent to uphold the commitment she has with Plaintiff and members of the community." Defendant also claims that Plaintiff attempted to intimidate her by threatening to terminate her membership in Atchison Village, which would be the equivalent of foreclosing/evicting her—an elderly woman—from her home that she has resided in for more than twenty years. (Complaint, ¶ 23.) (Etemadi Decl., ¶¶ 8-8; Mandel Decl., ¶ 9.).

After this Court granted Defendant's discovery motions on May 21, 2025, Plaintiff dismissed its case on June 6, 2025. The Request for Dismissal was entered on the same day, June 6, 2025.

On August 6, 2025, Defendant Phyllis Mandel (Defendant), by and through her counsel, MBK Chapman PC, filed a Motion for Attorney's Fees seeking \$94,218.32, supported by a Memorandum of Points and Authorities, Declarations of Jason K. Boss, Jessica Grazul, Sara Etemadi, Karla Garcia and Phyllis Mandel ("Motion"). The Motion was also accompanied by a Notice and Amended Notice, filed on August 13, 2025. Defendant claims that she was improperly sued in this case as a Defendant, and is now the prevailing party in this action within the meaning of Code of Civil Procedure sections 1032(a)(4) and 1033.5(a)(10(A), as well as under the express terms of Section 15 of the Mutual Ownership Contract between Atchison Village and Ms. Mandel, (below) which provides for an award